SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 02/23/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09

Meeting ID: 161 108 5023
Passcode: 869677

Courtroom Clerk's session

1. 9:00 AM CASE NUMBER: N25-1244
CASE NAME: MALINA CURIALE VS. RUBY LIU
***HEARING ON MOTION IN RE:**
FILED BY:
****TENTATIVE RULING:****

Parties to Appear.

2. 10:00 AM CASE NUMBER: C23-03105
CASE NAME: CEDRIC CHENG VS. DEREK CHU
***FURTHER CASE MANAGEMENT CONFERENCE PROVE UP HEARING**
FILED BY:
****TENTATIVE RULING:****

Plaintiff Cedric Cheng ("Plaintiff") filed an application on July 29, 2025 seeking entry of a default judgment by the court (the "Request for Entry of Default Judgment"). The Request for Entry of Default Judgment was initially rejected because of "IMPROPER AMOUNTS FOR ATTORNEY FEES AND INTEREST." See Notice dated August 20, 2025. The Court's notice instructed Plaintiff to correct and resubmit. The request was not resubmitted. However, a Memorandum of Costs was filed on September 16, 2025 and against on November 25, 2025. The Court later reset the mater for a prove up hearing on February 23, 2026, to further consider the application.

Background

A Complaint was filed herein against defendant Derek Chu ("Defendant") on December 9, 2023 (the "Complaint"). The Complaint alleges that Plaintiff made an initial loan to the Defendant in the amount of $50,000 which was later increased to $80,000 (the "Loan"). The Loan was documented by written promissory notes, the last one being executed on or about July 1, 2019, reflecting, at that time, a principal unpaid balance of $266,766.29, inclusive of accrued interest. The Complaint alleges that Defendant "paid interest payments to [Plaintiff] sporadically." Despite demands for full repayment, the claimed balance was never paid. It is alleged that Defendant was later criminally indicated for running a Ponzi scheme.

A default was entered against Defendant on August 9, 2024.

The principal damages sought are $266,776.29. In addition, Plaintiff seeks an award of prejudgment interest of $237,422.00, costs of $19,993.23 inclusive of attorneys' fees at the Court default schedule rate.

Analysis

If a complaint seeks nonmonetary relief or monetary relief in amounts that require additional evidence beyond a "clerk's judgment" or the exercise of judgment to determine, a plaintiff must request entry of judgment by the court. *Holloway v. Quetel* (2015, 242 Cal. App. 4th 1425, 1432; see Code Civ. Proc. § 585. In those cases the plaintiff must affirmatively establish his or her entitlement to the specific judgment requested: "The court shall hear the evidence offered by the plaintiff, and shall render judgment in the plaintiff's favor for that relief, not exceeding the amount stated in the complaint, in the statement required by [Code of Civil Procedure] [s]ection 425.11, or in the statement provided for by [Code of Civil Procedure] [s]ection 425.115, as appears by the evidence to be just. …" *Holloway v. Quetel*, *supra*, 242 Cal.App.4th at 1432, quoting Code Civ. Proc. § 585. The court must assure itself that the plaintiff has made a "*prima facie* case" showing entitlement to each type of damages under (1) the relevant statute, contract, or legal doctrine, and (2) the well-pled allegations in its operative complaint. *Johnson v. Stanhiser* (1999) 72 Cal.App.4th 357, 362; *Siry Investment, L.P. v. Farkhondehpour* (2022) 13 Cal.5th 333, 343.

The Court does not conclude that the Plaintiff has made a *prima facie* case showing entitlement to the relief sought. Most significantly, Plaintiff seeks excessive damages that are barred by the doctrine of usury.

The California Constitution provides that parties may contract in writing to set the interest rate on a loan or forbearance "at a rate not exceeding 10 percent per annum." Cal. Const., art. XV, § 1, (1). In addition, it states that no person "shall by charging any fee, bonus, commission, discount or other compensation receive from a borrower more than the interest authorized by this section upon any loan or forbearance of any money, goods or things in action." Cal. Const., art. XV, § 1. This plain language makes clear that the stated interest plus any additional "bonus" or "other compensation" cannot exceed the 10 percent rate. *Grados v. Shiau* (2021) 63 Cal.App.5th 1042, 1054.

The Loan's present balance is over half a million dollars on an initial Loan of $80,000 in principal, roughly ten years ago. That extraordinary amount of accrued interest is the result of the Loan's interest term being an "auto-renewal" at 10% every 90 days. That is effectively a per *annum* interest rate of 40%. As structed, the Loan is usurious. The agreed upon reduction of the interest rate that is said to have occurred in or about December 2019, does not cure the issue. The reduced interest rate was then accruing on an amount already including interest accrued at a usurious rate. In any event, 3% per quarter is an effective 12% per annum interest, still usurious.

The Court finds that the rate of interest charged on the Loan was usurious and violated the usury laws. Therefore, Plaintiff is entitled to recover only the principal sum of the Loan, offset by any payments made. When a loan is usurious, the creditor is entitled to repayment of the principal sum only. *Hardwick v. Wilcox* (2017) 11 Cal.App.5th 975, 979 ("Hardwick"). The creditor is entitled to no interest whatsoever. *Id*., citing *Gibbo v. Berger* (2004) 123 Cal.App.4th 396, 403. The attempt to exact the usurious rate of interest renders the interest provisions of a note void. *Hardwick*, *supra*, 11 Cal.App.5th at 979. Any interest payments made at the usurious rate must be credited against the principal balance in any action to collect on the note. *Id*. Payments on a usurious note are deemed to apply first to principal. *Hardwick*, *supra*, 11 Cal.App.5th at 991.

No exemption to the usury laws have been pled or proved up by Plaintiff. Nor does the Court conclude that Plaintiff can avoid the effect of the usurious Loan by couching recovery in terms of the other alleged torts. The application fails to make a *prima facie* showing of properly awardable damages under any of the other theories of recovery.

<u>Disposition</u>

The Court finds and orders as follows:

1. The Request for Entry of Default Judgment is DENIED, without prejudice to resubmittal to amend the amounts sought in accordance with the foregoing.
2. The Court shall issue the order after hearing.

3. 10:00 AM CASE NUMBER: C22-02634
CASE NAME: RENE HOM VS. ERIC TRUE
JURY TRIAL 5-7 DAYS
FILED BY:
<u>*TENTATIVE RULING:*</u>

Parties to Appear.

Law & Motion

4. 9:00 AM CASE NUMBER: C22-02694
CASE NAME: JANE DOE VS. GERALD BEARDEN
***HEARING ON MOTION IN RE: ENFORCE THE SETTLEMENT AGREEMENT AND STIPULATION FOR JUDGMENT ENTERING PARTIAL JUDGMENT AGAINST DEFENDANT GERALD C. BEARDEN IN THE AMOUNT OF $52,934.89**
FILED BY: DOE, JANE
****TENTATIVE RULING:****

Plaintiff Jane Doe ("Plaintiff") filed a Motion to Enforce the Settlement Agreement and Stipulation for Judgment on January 20, 2026 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on February 23, 2025. The motion is unopposed.

Background

The parties entered into that certain settlement agreement on or about October 30, 2025 (the "Settlement Agreement"), the terms of which included payment by the defendant Gerald C. Bearden ("Defendant") in the amount of $100,000, to be paid in accordance with the terms thereof, including an initial installment payment of $50,000 on or before November 28, 2025 (the "Payment Terms and Conditions"). See Declaration of Sandra Ribera Speed filed January 20, 2026 ("Supporting Declaration"), ¶2 *et seq*. and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. *Id*., **Exhibit A,** ¶5 (and Exhibit A to the Settlement Agreement).

Analysis

Defendant defaulted on the Payment Terms and Conditions, at least as far as the first payment due. See Supporting Declaration, ¶¶3-4. Defendant failed to cure after notice. *Id*. at ¶4.

However, nothing in the Settlement Agreement and attached Stipulation for Judgment indicates that a judgment will be given for the first $50,000 payment, subject, somehow to a later judgment for the additional $50,000 if not paid. That second payment is not due until April 29, 2026 and the plain language of the Settlement Agreement contemplates entry of a judgment only if both payments are not made.

1. Defendant shall pay fifty thousand dollars ($50,000), on or before November 28, 2025, and an additional fifty thousand dollars ($50,000) on or before April 29, 2026, to Ribera Law Firm, APC, on behalf of Plaintiff;
2. Plaintiff shall only file or record this Stipulation for Judgment if the payment referenced in the preceding paragraph has not been paid by the due dates referenced;

Indeed, a partial judgment would be barred by the one-judgment rule. And there does not appear to be any sort of acceleration clause that would allow the entry of a judgment for the full $100,000 amount at this time.

Disposition

The Court finds and orders as follows:

1. The Motion to Enter Stipulated Judgment after Default is DENIED, without prejudice.
2. The Court will enter the order after hearing.

5. 9:00 AM CASE NUMBER: C23-00233
CASE NAME: MAEN JWEINAT VS. NATALIE MOSS
HEARING ON SUMMARY MOTION FILED BY MAEN JWEINAT
FILED BY: JWEINAT, MAEN S.
TENTATIVE RULING:

Introduction

Before the Court is Plaintiff Maen S. Jweinat's ("Plaintiff") Motion for Summary Judgment, or in the alternative, summary adjudication, ("MSJ/A"). The MSJ/A relates to Plaintiff's Third Amended Complaint ("3AC") for four causes of action relating to the lease of the subject commercial property located at 8065 Brentwood Boulevard, unit 4, Brentwood, California, against Natalie Moss Miladinovich, As Trustee Of The 1987 Miladinovich Family Trust Dated May 4, 1987 ("Defendant").

Plaintiff moves this Court for summary judgment, or in the alternative, summary adjudication, on the grounds that there is no triable issue of material fact, and that Plaintiff is entitled to judgment as a matter of law.

The motion is based on the following grounds:

GROUND ONE: The County's COVID-19 Emergency Ordinances Protected Plaintiff Jweinat's Tenancy and Lease Rights;

GROUND TWO: Tenant Properly Exercised The Lease's Second Option Extending Lease Term Through December 31, 2027;

GROUND THREE: Landlord's Refusal to Acknowledge Lease Renewal and Serving Eviction Notices on Tenant Are Retaliatory and in Violation of County Ordinances;

GROUND FOUR: No Basis for Eviction of Tenant or Award of Damages to Landlord Exists; and

GROUND FIVE: Tenant has been damaged by the actions of Landlord and should recover his damages in the sum of $55,673.00 and said sum should be trebled and should recover court costs, including reasonable attorney fees.

For the following reasons, **Plaintiff's motion for summary judgment is DENIED**.

Request for Judicial Notice

The burden is on the party seeking judicial notice to provide sufficient information to allow the court to take judicial notice. (*Ross v. Creel Printing Publishing Co., Inc*. (2002) 100 Cal.App.4th 736, 744.) "A court is not required to seek out on its own initiative indisputable sources of information. Whether information supplied by party is sufficient for the purpose will vary from case to case. In some cases, the original source documents may be required to provide the court with sufficient information." (*People v. Maxwell* (1978) 78 Cal.App.3d 124, 130-131.) If the information supplied is not sufficient the trial judge is entitled to refuse to take judicial notice of the matter requested. (Jefferson, Cal. Evidence Benchbook (Cont.Ed.Bar 1972) Judicial Notice, 47.4.)

Plaintiff's RJN

Plaintiff requests judicial notice of three documents:

1. Order Overruling Demurrer and Denying Motion to Strike issued on March 6, 2025, a copy of which is attached to Plaintiff's Appendix of Exhibits in Support of Motion for Summary Judgment ("Appendix") as Exhibit 30.

2. Contra Costa County Health Officer Order No. HO-COVID19-09 issued April 29, 2020, requiring residents to "shelter in place," a copy of which is attached to Plaintiff's Appendix as Exhibit 24.

3. California Governor Gavin Newsom's Stay at Home Executive Order N-33-20 issued March 19, 2020, a copy of which is attached to Plaintiff's Appendix as Exhibit 23.

Exhibit 30 of Plaintiff's Appendix is judicially noticeable under Evidence Code § 452(d) as a record of a state court ruling. Exhibits 23 and 23 of Plaintiff's Appendix is judicially noticeable under Evidence Code § 452(b) as the Court is empowered to take judicial notice of "[r]egulations and legislative enactments issued by or under the authority of the United States or any public entity in the United States." (Evid. Code 452(b).) The Court **GRANTS judicial notice of all three documents**.

Defendant's RJN

Defendant requests judicial notice of two documents, certified minutes of Board of Supervisors Meeting on June 22, 2021, and September 21, 2021. Under Evidence Code 452(b), the Court is empowered to take judicial notice of "[r]egulations and legislative enactments issued by or under the authority of the United States or any public entity in the United States." (Evid. Code § 452(b).) Certified minutes of Board of Supervisors meetings fall within this category. The Court **GRANTS judicial notice of both documents**.

Factual Background

The facts in the Third Amended Complaint ("TAC") are as follows.

Plaintiff entered a lease of commercial property within Defendant Miladinovich's shopping center on December 24, 2012 (hereinafter "Lease"). (TAC ¶ 1.) In 2017, Plaintiff exercised the first of two options under the Lease, extending the Lease term to December 31, 2022. (Id. at ¶¶ 11-12, Lease, § 2.) After the COVID-19 pandemic struck, the Contra Costa County Board of Supervisors enacted a successively superseding series of ordinances containing temporary prohibitions on certain evictions of commercial tenants in Contra Costa County to ameliorate the impacts of the pandemic (hereinafter, collectively "Ordinances") in 2020 to 2021. (Id. at ¶¶ 14-15 and 37-38 and Exh. 2; Miladinovich's RJNs filed June 21, 2023, and June 26, 2023, and her Errata filed August 27, 2024 (hereinafter "Miladinovich RJNs").) The Ordinances provide that "a landlord of commercial real property shall not terminate a tenancy for failure to pay rent if the tenant demonstrates that the failure to pay rent is directly related to a loss of income or out-of-pocket medical expenses associated with the COVID-19 pandemic or any local, state, or federal government response to the pandemic." (See, e.g., TAC, Exh. 2, § 4(a).) In addition to prohibiting eviction notices and unlawful detainer actions served or filed during the effective term of the Ordinances, the Ordinances all provided actionable remedies in identical language as seen, for example, in Section 6 (b) of Ordinance 2021-20.

Through April 30, 2020, Plaintiff timely made all required rent payments due under the Lease. TAC, ¶ 17. Thereafter, in May, 2020, after receiving a text message from a representative of Defendant Miladinovich, Plaintiff provided Defendant with a Declaration of COVID-19 Financial Distress dated May 1, 2020, documenting Plaintiff's inability to continue to timely pay rent as a result of the COVID-19 pandemic due to: (1) substantial loss of business income, (2) temporary closure of business, (3) substantial out-of-pocket medical expense, (4) decrease in traffic, and (5) shorter business hours (hereinafter "May 2020 Declaration"). (Id. at ¶ 18, Exh. 1, § 3.1, and Exh. 3.) Therein, it was stated that "Fantasia Smoke Shop is seeking protection under the Contra Costa County eviction moratorium ordinance." (Id.) Although not able to pay full rent due to hardships of the COVID-19 pandemic, Plaintiff made a rent payment to Defendant Miladinovich in the amount of $3,322.60 on October 1, 2020. (Id. at ¶¶ 16 and 19.)

On March 8, 2021, Defendant Miladinovich served a Five-Day Notice to Pay or Quit on Plaintiff (hereinafter "March 2021 Notice") for "rent . . . for months of May, June, July, August, September, November, and December 2020, and January and February 2021" and "Common area maintenance charges . . . ." (Id. at ¶ 20 and Exh. 4.) The March 2021 Notice did not include a Notice of Tenant=s Rights and Availability of Assistance, as required by the Ordinances. (Id. at ¶21.) On March 15, 2021, Plaintiff provided, under penalty of perjury, another Declaration of COVID-19 Financial Distress to Defendant Miladinovich in which Plaintiff set forth a payment plan for the shortfall of actual rent and common area expense, with a final payment proposed for October 1, 2022 (hereinafter "March 2021 Declaration"). (Id. at Exh. 5.) Plaintiff stated in the March 2021 Declaration that it was being presented "pursuant to Contra Costa Ordinance No. 2021-04" and "[d]ue to the COVID-19 pandemic." (Id.)

Plaintiff commenced making payments as promised in his Declaration. Nevertheless, on October 15, 2021, Defendant Miladinovich caused to be served another Five Day Notice to Pay or Quit on Plaintiff (hereinafter "October 2021 Notice") for "rent . . . for a portion of the month of May 2021, and the months of June, July, August, September, and October 2021" and "Common area maintenance charges . . . ." for a total demanded of $18,203.40. (Id. at ¶ 23 and Exh. 6.) The October 2021 Notice also did not include a Notice of Tenant=s Rights and Availability of Assistance, as required by the Ordinances. (Id.) Due to the immediate threat of eviction and further retaliation, Plaintiff paid the entire sum set forth in the October 2021 Notice within the five-day period, as demanded. (Id. at ¶ 24.)

Under the Lease, Plaintiff has an option to extend this lease for a period of two five (5) year options if all rents and common area costs have been paid in a timely manner. Tenant to notify landlord in writing of his intent to extend no less than 90 days before the expiration of original terms." (TAC, Exh. 1, § 2.) On September 23, 2022, more than ninety days prior to the Lease expiring on December 31, 2022, Plaintiff attempted to exercise the second of the two options to extend the Lease. (Id. at ¶¶ 25-26 and Exh. 7.) Defendant Miladinovich refused to extend the Lease, citing Plaintiff having fallen behind on payment of rent due during the time that the Ordinances were in effect as a reason. (Id.)

In its TAC, Plaintiff seeks to hold Defendants accountable for violations of the Ordinances, including the two eviction notices and alleged retaliation against Plaintiff for exercising rights under the

Ordinances as described therein. (Id. at ¶¶ 4, 7, and 36-40.)

<u>Legal Standard</u>

A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding. (CCP § 437c(a)(1).)

Section 437c(p)(1) provides, in relevant part:

> A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.

The Court may not weigh the evidence but must view it "in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. [Citations omitted.]" (*Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864.) Declarations and other evidence offered in support of a motion for summary judgment are strictly construed, while declarations and evidence offered in opposition to the motion are liberally construed. (*D'Amico v. Bd. of Medical Examiners* (1974) 11 Cal.3d 1, 20; *Johnson v. American Standard* (2008) 43 Cal.4th 56, 64.)

" '[S]ummary judgment cannot be granted when the facts are susceptible to more than one reasonable inference . . . .' " (*Husman v. Toyota Motor Credit Corp.* (2017) 12 Cal.App.5th 1168, 1180; *Cohen v. Five Brooks Stable* (2008) 159 Cal.App.4th 1476, 1497.) "All doubts as to the propriety of granting the motion—i.e., whether there is any triable issue of material fact—are to be resolved in favor of the party opposing the motion." (*Cohen v. Five Brooks Stable, supra,* 159 Cal.App.4th at 1483.)

<u>Analysis</u>

Breach of Contract Cause of Action

Plaintiff's Initial Burden

"To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff." (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.)

Here, the existence of the lease agreement between the two parties for the subject property is uncontroverted as is the existence of the second lease extension for a term ending in December 31, 2027. (UMF 1-2.)

Plaintiff asserts performance of the contract through the evidence of RFA responses by Defendant and the Fantasia Smoke Shop business ledger. (UMF 10-11.) Plaintiff asserts excuse for nonperformance through the evidence of Exhibit 3 to the TAC which is the purported Declaration of Covid-19 Financial Distress. (UMF 10; See AOE 31, Exhs. 3-6.)

It is undisputed that more than 90 days prior to the lease expiring, on December 31, 2022, Plaintiff provided notice of his intent to exercise the second lease extension option to December 31, 2027, according to the terms of the lease. (UMF 13.)

It is undisputed that Defendant refused Plaintiff's exercise of the second lease extension through December 31, 2027, Defendant refutes that Plaintiff's exercise was valid and that Defendant's refusal was improper. (UMF 14.)

Plaintiff has established evidence of damages through declarations by Plaintiff Maen S. Jweinat and Attorneys Cary S. Reisman and Mathew Kumin. (UMF 16.) Thus, Plaintiff has met his initial burden of proof. The burden now shifts to Defendants to either show a dispute of material fact as to an element or to establish all the elements of a defense.

Defendant's Dispute of Material Facts

For UMF 2 Defendant brings up two disputes of material facts. Defendant's first dispute whether the rents were timely paid is not a valid dispute since Defendant cites no evidence for this dispute. The two pieces of evidence cited are about the smoke shop and gift store distinction. Defendant's second dispute was that the option could not be exercised since Plaintiff changed the business from a gift shop to a smoke shop. However, Defendant does not cite any authority that provides Defendant with the power to do so. Thus, Defendant does not provide any valid disputes as to UMF 2.

Defendant successfully disputed the same material fact for UMF 10 and 16 . Defendant disputes that Plaintiff personally served Defendant with the Declaration of COVID-19 Financial Distress in 2020 (TAC Exh. 3.) through the Declaration of the Liberty Link Shopping Center and half-brother to Defendant Natalie Miladinovich Moss, Michel Gnutzman. (UMF 14; Gnutzman Decl. ¶ 2.) Mr. Gnutzman claims that the first time he was provided with a declaration of financial distress was in 2021. (UMF 14; Gnutzman Decl. ¶ 13.)

The text of Ordinance No. 2020-14 expressly requires the tenant to, "notify that landlord in writing before the rent is due, or within a reasonable period of time afterwards not to exceed 14 days that the tenant needs to delay all or some payment of rent because of an inability to pay the full amount due to reasons related to COVID-19." (Plaintiff's Exh. 18, bates number 0068, Section 3(a).)

Since the subjected ordinances require written notice of a tenant's inability to pay rent before or up to 14 days after the rent is due, whether Plaintiff successfully served notice of COVID financial hardship is a material fact. This creates a dispute of material fact regarding Plaintiff's performance or excuse of nonperformance element. Summary Adjudication must be denied as to this cause of action.

Violation of Contra Costa Ordinances Cause of Action

Here, Defendant disputes UMF 25, 26, and 29 with identical disputes and evidence as presented in UMF 10 and 16. Thus the same analysis applies to those UMF's.

Defendant disputes that Plaintiff personally served Defendant with the Declaration of COVID-19 Financial Distress in 2020 (TAC Exh. 3.) through the Declaration of the Liberty Link Shopping Center and half-brother to Defendant Natalie Miladinovich Moss, Michel Gnutzman. (UMF 14; Gnutzman Decl. ¶ 2.) Mr. Gnutzman claims that the first time he was provided with a declaration of financial distress was in 2021. (UMF 14; Gnutzman Decl. ¶ 13.)

The text of Ordinance No. 2020-14 expressly requires the tenant to, "notify that landlord in writing before the rent is due, or within a reasonable period of time afterwards not to exceed 14 days that the tenant needs to delay all or some payment of rent because of an inability to pay the full amount due to reasons related to COVID-19." (Plaintiff's Exh. 18, bates number 0068, Section 3(a).)

Since the subjected ordinances require written notice of a tenant's inability to pay rent before or up to 14 days after the rent is due, whether Plaintiff successfully served notice of COVID financial hardship is a material fact. This creates a dispute of material fact whether Plaintiff fulfilled the notice of financial hardship requirement under the subject Ordinances. Summary Adjudication must be denied as to this cause of action.

Specific Performance Cause of Action

A cause of action for breach of contract for specific performance requires the following elements: (1) Contract breach; (2) inadequacy of a legal remedy; (3) underlying contract reasonable and supported by adequate consideration; (4) existence of a mutuality of remedies; (5) contractual terms sufficiently definite to know what it is to enforce; and (6) substantial similarity between requested performance and promised performance. (*Real Estate Analytics, LLC v. Vallas* (2008) 160 Cal.App.4th 463, 472.)

Since the first element of specific performance is a contract breach, the same analysis from the breach of contract cause of action applies to this cause of action.

Defendant disputes that Plaintiff personally served Defendant with the Declaration of COVID-19 Financial Distress in 2020 (TAC Exh. 3.) through the Declaration of the Liberty Link Shopping Center and half-brother to Defendant Natalie Miladinovich Moss, Michel Gnutzman. (UMF 14; Gnutzman Decl. ¶ 2.) Mr. Gnutzman claims that the first time he was provided with a declaration of financial distress was in 2021. (UMF 14; Gnutzman Decl. ¶ 13.)

The text of Ordinance No. 2020-14 expressly requires the tenant to, "notify that landlord in writing before the rent is due, or within a reasonable period of time afterwards not to exceed 14 days that the tenant needs to delay all or some payment of rent because of an inability to pay the full amount due to reasons related to COVID-19." (Plaintiff's Exh. 18, bates number 0068, Section 3(a).)

Since the subjected ordinances require written notice of a tenant's inability to pay rent before or up to 14 days after the rent is due, whether Plaintiff successfully served notice of COVID financial hardship is a material fact. This creates a dispute of material fact regarding Plaintiff's performance or excuse of nonperformance for the breach of contract element. Summary Adjudication must be denied as to this cause of action.

Declaratory Relief Cause of Action

The essential elements of a declaratory-relief cause of action are (1) an actual controversy between the parties regarding contractual or property rights (2) involving continuing acts/omissions or future consequences, (3) which has sufficiently ripened to permit judicial intervention and resolution, but (4) which has not yet blossomed into an actual cause of action. (*Osseous Technologies of America, Inc. V. DiscoveryOrtho Partners LLC* (2010) 191 Cal.App.4th 357, 366-369.)

Here, Plaintiff is unable to meet the first prong for the same circumstances for the specific performance cause of action, because Defendant successfully demonstrated a dispute of material fact as to whether the subject lease agreement was breached. Thus, the breach of contract analysis also applies to this cause of action.

Defendant disputes that Plaintiff personally served Defendant with the Declaration of COVID-19 Financial Distress in 2020 (TAC Exh. 3.) through the Declaration of the Liberty Link Shopping Center and half-brother to Defendant Natalie Miladinovich Moss, Michel Gnutzman. (UMF 14; Gnutzman Decl. ¶ 2.) Mr. Gnutzman claims that the first time he was provided with a declaration of financial distress was in 2021. (UMF 14; Gnutzman Decl. ¶ 13.)

The text of Ordinance No. 2020-14 expressly requires the tenant to, "notify that landlord in writing before the rent is due, or within a reasonable period of time afterwards not to exceed 14 days that the tenant needs to delay all or some payment of rent because of an inability to pay the full amount due to reasons related to COVID-19." (Plaintiff's Exh. 18, bates number 0068, Section 3(a).)

Since the subjected ordinances require written notice of a tenant's inability to pay rent before or up to 14 days after the rent is due, whether Plaintiff successfully served notice of COVID financial hardship is a material fact. This creates a dispute of material fact regarding Plaintiff's element for an actual controversy between the parties regarding contractual or property rights. Summary Adjudication must be denied as to this cause of action.

Defendant's Affirmative Defenses

The estoppel, and two failures to satisfy conditions for renewal or extension affirmative defenses are also affected by the disputed material fact regarding the notice of inability to pay rent because it affects the protection afforded by the subject Ordinances. (UMF 41, 45, 48.)

Defendant disputes that Plaintiff personally served Defendant with the Declaration of COVID-19 Financial Distress in 2020 (TAC Exh. 3.) through the Declaration of the Liberty Link Shopping Center and half-brother to Defendant Natalie Miladinovich Moss, Michel Gnutzman. (UMF 14; Gnutzman Decl. ¶ 2.) Mr. Gnutzman claims that the first time he was provided with a declaration of financial distress was in 2021. (UMF 14; Gnutzman Decl. ¶ 13.)

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Since the subjected ordinances require written notice of a tenant's inability to pay rent before or up to 14 days after the rent is due, whether Plaintiff successfully served notice of COVID financial hardship is a material fact. This creates a dispute of material fact whether Plaintiff fulfilled the notice of financial hardship requirement under the subject Ordinances. Summary Adjudication must be denied as to this cause of action. Summary Adjudication must be denied as to the affirmative defenses listed in UMF 41, 45, and 48.

Defendant's Cross Complaint Declaratory Relief Cause of Action

The Court initially notes that Plaintiff did not mention this cause of action in its notice and as such should not be allowed to argue this issue. (Cal. Rules of Court, rule 3.1350(b).)

Even if this issue was in the notice all the previous UMF's are incorporated by both parties, as such, the Court denies the summary adjudication based on the previous analysis of the previous UMF's.

Defendant's Cross Complaint Trespass Cause of Action

The valid exercise of the second option affirmative defenses fails for Plaintiff's because this defense is affected by the disputed material fact regarding the notice of inability to pay rent because it affects the protection afforded by the subject Ordinances. (UMF 51.)

Defendant disputes that Plaintiff personally served Defendant with the Declaration of COVID-19 Financial Distress in 2020 (TAC Exh. 3.) through the Declaration of the Liberty Link Shopping Center and half-brother to Defendant Natalie Miladinovich Moss, Michel Gnutzman. (UMF 14; Gnutzman

Decl. ¶ 2.) Mr. Gnutzman claims that the first time he was provided with a declaration of financial distress was in 2021. (UMF 14; Gnutzman Decl. ¶ 13.)

The text of Ordinance No. 2020-14 expressly requires the tenant to, "notify that landlord in writing before the rent is due, or within a reasonable period of time afterwards not to exceed 14 days that the tenant needs to delay all or some payment of rent because of an inability to pay the full amount due to reasons related to COVID-19." (Plaintiff's Exh. 18, bates number 0068, Section 3(a).)

Since the subjected ordinances require written notice of a tenant's inability to pay rent before or up to 14 days after the rent is due, whether Plaintiff successfully served notice of COVID financial hardship is a material fact. This creates a dispute of material fact whether Plaintiff fulfilled the notice of financial hardship requirement under the subject Ordinances. Summary Adjudication must be denied as to this cause of action. Summary Adjudication must be denied as to the affirmative defenses listed in UMF 51.

Unlawful Detainer Action

The valid exercise of the second option affirmative defenses fails for Plaintiff's because this defense is affected by the disputed material fact regarding the notice of inability to pay rent because it affects the protection afforded by the subject Ordinances. (UMF 52.)

Defendant disputes that Plaintiff personally served Defendant with the Declaration of COVID-19 Financial Distress in 2020 (TAC Exh. 3.) through the Declaration of the Liberty Link Shopping Center and half-brother to Defendant Natalie Miladinovich Moss, Michel Gnutzman. (UMF 14; Gnutzman Decl. ¶ 2.) Mr. Gnutzman claims that the first time he was provided with a declaration of financial distress was in 2021. (UMF 14; Gnutzman Decl. ¶ 13.)

The text of Ordinance No. 2020-14 expressly requires the tenant to, "notify that landlord in writing before the rent is due, or within a reasonable period of time afterwards not to exceed 14 days that the tenant needs to delay all or some payment of rent because of an inability to pay the full amount due to reasons related to COVID-19." (Plaintiff's Exh. 18, bates number 0068, Section 3(a).)

Since the subjected ordinances require written notice of a tenant's inability to pay rent before or up to 14 days after the rent is due, whether Plaintiff successfully served notice of COVID financial hardship is a material fact. This creates a dispute of material fact whether Plaintiff fulfilled the notice of financial hardship requirement under the subject Ordinances. Summary Adjudication must be denied as to this cause of action. Summary Adjudication must be denied as to the affirmative defenses listed in UMF 52.

<u>Conclusion</u>

As analyzed above, **<u>Plaintiff's motion for summary judgment is DENIED</u>**.

<u>Evidentiary Objections</u>

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ. (See CCP § 437c(q).)

Defendant's Evidentiary Objections

Declaration of Loay Jweinat

OBJ 1: paragraph 1-23, page 2-5. **Overruled**.

Declaration of Loay Jweinat

OBJ 1: Paragraph 2, page 2, lines 8-9. **Overruled**.

OBJ 2: Paragraph 3, page 2, lines 12-14. **Overruled**.

OBJ 3: Paragraph 5, page 2, lines 15-16. **Sustained**.

Declaration of Cary S. Reisman

OBJ 1: Paragraph 6, page 2, lines 25-28. **Overruled**.

OBJ 7: Paragraph 13, page 4, lines 14-17. **Overruled**.

OBJ 8: Paragraph 14, page 4, lines 19-24. **Overruled**.

OBJ 9a: Paragraph 15, page 4, lines 25-28. **Overruled**.

OBJ 9b: Paragraph 15, page 4, lines 25-28 and page 5, lines 1-6. **Overruled**.

Declaration of Matthey Kumin

OBJ 1: Paragraph 4, page 2, lines 14-17. **Overruled**.

6. 9:00 AM CASE NUMBER: C24-01538
CASE NAME: FULLER PROPERTIES, LLC VS. SEQUOIA EQUITIES, INC.
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: SEQUOIA EQUITIES, INC.
TENTATIVE RULING:

Before the Court is a demurrer by defendants Sequoia Equities Inc. and Alder Creek Management, Inc. to Plaintiffs' second amended complaint. For the reasons set forth, the Court **CONTINUES** the hearing to **9:00 a.m. on April 27, 2026.** The Court **ADVANCES** the hearing on the demurrer by COIT Financial Group, LLC to the same date and time, as set forth below.

Continuance in Light of Pending COIT Demurrer and Advancement of COIT Demurrer Hearing

The register of actions for this matter reflects, and the current demurrer papers note, that defendant COIT Financial Group, LLC has also filed a demurrer to the second amended complaint ("2AC"). The Court will continue the hearing on the Sequoia/Alder Creek demurrer and advance the hearing on the COIT demurrer so that the pleading challenges can be heard at the same time. The hearing on the COIT demurrer is hereby **RESET and ADVANCED** from **June 8, 2026 to 9:00 a.m. on April 27, 2026**. Counsel for the demurring parties Sequoia/Alder Creek is ordered to serve all parties with written notice of this ruling and of the change in the hearing date on the COIT demurrer **by March 2, 2026**.

Plaintiffs' Notice Objection

The continuance resolves any objection by Plaintiffs concerning the lack of timely service of a notice of hearing on the demurrer, to the extent that objection has not been waived. The notice of hearing with the actual hearing date on the demurrer was served less than 16 court days, plus two court days for electronic service, prior to the hearing. (Code Civ. Proc. §§ 1005(b) and 1010.6(a)(3)(B).) A notice of motion must include the date and time of the hearing, and the notice period therefore runs from the date a complete notice with the hearing date and time is served, though the defect is waivable. (Code Civ. Proc. § 1010 ["Notices must be in writing, and the notice of a motion, other than for a new trial, must state when and the grounds upon which it will be made, and the papers, if any, upon which it is to be based." (emphasis added)]; *Bohn v. Bohn* (1913) 164 Cal. 532, 536-537 [failure to include notice of date and time of hearing in notice of motion renders the notice fatally defective].) Defective notice is nevertheless waivable. (*See In De Luca v. Board of Supervisors* (1955) 134 Cal.App.2d 606, 609 [appearance despite defective notice]; *Calton v. Quint* (2000) 77 Cal.App.4th 690, 697 [opposition to motion on the merits despite defective notice].) (*Compare to Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1267 [opposing party only objected to the defective notice and made no opposition on the merits].)

Additional Meet and Confer Efforts Required

The Court has reviewed Mr. Davidson's declaration in regard to his efforts to meet and confer with opposing counsel Mr. Rupprecht or another attorney in Mr. Rupprecht's office. (Davidson Decl. ¶¶ 9-14 and Exhs. 7-10.) The 2AC was served by electronic mail on counsel for defendants Sequoia and Alder Creek on December 22, 2025, according to the proof of service attached to the pleading. With the additional two court days provided for defendants to respond under Code of Civil Procedure section 1010.6(a)(3)(B), defendants' responsive pleading was due January 23, 2026. It appears that there were scheduling conflicts for counsel for Plaintiffs and counsel for Sequoia and Alder Creek from January 14, 2026 until January 21, 2026 when defendants filed their demurrer.

Based on the continuance of the hearing on the Sequoia/Alder Creek, Plaintiffs and Sequoia/Alder Creek should have time to conduct a good faith meet and confer conference to address and attempt to narrow the issues raised by the demurrer before the continued hearing. (Code Civ. Proc. § 430.41(a).) The Court requests that the parties conduct a meet and confer by telephone, videoconference, or in person **on or before March 16, 2026**, and that counsel for Sequoia/Alder Creek file a supplemental meet and confer declaration **by March 20, 2026**.

7. 9:00 AM CASE NUMBER: C24-01921
CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. DAVID SEENO
***HEARING ON MOTION IN RE: APPOINTMENT OF THE HONORABLE STEVEN K. AUSTIN AS DISCOVERY REFEREE**
FILED BY: DAVID T. SEENO
****TENTATIVE RULING:****

Defendants David Seeno and Gold Coast Pipelines, Inc. ("Defendants") filed a Motion for Appointment of the Hon. Steven K. Austin (Ret.) as Discovery Referee on December 18, 2025 (the "Discovery Referee Motion"). The Discovery Referee Motion was initially set for hearing on May 11, 2026. That hearing was later advanced to February 23, 2026. The motion is opposed.

Background

There are a series of lawsuits between the parties and various involved entities. See Declaration of

Charmaine G. Yu filed December 18, 2025, ¶2 *et seq*. As the Court is well aware, in these and related litigation involving other family members, there have been extensive discovery issues and retired Judge Austion was engaged previously to serve as a discovery referee to assist the parties to navigate those issue in an expedited fashion utilizing flexible techniques available to a discovery referee. *Id*.

After some back and forth amongst the parties regarding Judge Austin's availability, it is represented that Judge Austin is available for the appointment. *Id*. at ¶18.

At this stage, there are several discovery motions pending with hearing dates of April 6, 2026 (motion for protective order), June 22, 2026 (motion to compel further discovery responses), and July 27, 2026 (two motions to compel further discovery responses). These matter are collectively referred to as the "Pending Discovery Motions."

<u>Analysis</u>

In order for the court to appoint a discovery referee over the objections of a party, it must be necessary, not merely convenient. *Taggares v. Superior Court* (1998) 62 Cal.App.4th 94, 105-106; *Hood v. Superior Court* (1999) 72 Cal.App.4th 446, 449. A majority of the following factors must be present, including: (1) there are multiple issues to be resolved; (2) multiple issues to be heard simultaneously; (3) a continuum of many motions; and (4) the number of documents to be reviewed make the inquiry inordinately time consuming. *Taggares, supra,* 62 Cal.App.4th at 105; see also Rule 3.922 of the California Rules of Court ("CRC").

The Court is less interested in argument over whether any given party agreed to the appointment, as addressed at length in the Opposition, than with whether or not such appointment is appropriate under the guiding factors.

There are a multiplicity of discovery matters pending with multiple issues to be resolved. The Court is familiar with the breadth and scope of the litigation both in these consolidated matters and other related litigation. The expanding number of discovery matters threaten to take up considerable court time and judicial resources, consistent with past experience.

While the Court is sensitive to perceived issues with prior processes before the discovery referee, the parties are encouraged to work closely with the discovery referee to create streamlined processes where appropriate. And the Court finds that this is another advantage and reason for making the referral, especially given the history of these cases and litigation.

<u>Disposition</u>

The Court finds and orders as follows:

1. The Discovery Referee Motion is GRANTED and the Court orders the appointment of the Hon. Steven K. Austin (Ret.) as a discovery referee (the "Discovery Referee") herein, pursuant to Code of Civil Procedure section 640.
2. The Court finds, in its discretion, that such an appointment is necessary. The Court finds that the multiple discovery motions, the existing disputes raised by the Pending Discovery Motions and complexity of such issues require a discovery reference.
3. The Discovery Referee is appointed to hear and determine the Pending Discovery Motions and any further discovery matters herein.
4. Costs of the Discovery Referee shall be apportioned equally among the parties, except that the costs attributable to any discovery related motion shall be subject to reallocation in the

discretion of the Discovery Referee.

5. The parties to meet and confer within fourteen (14) days on a form of Discovery Referee appointment order.
6. In light of the foregoing, the Pending Discovery Motions are taken off calendar and referred to the Discovery Referee, as set forth above.

8. 9:00 AM CASE NUMBER: C24-02551
CASE NAME: ODK CAPITAL, LLC VS. THAI PHAM
***HEARING ON MOTION IN RE: RECONSIDERATION OOF ORDER DENYING MOTION TO SET ASIDE DEFAULT.**
FILED BY:
<u>*TENTATIVE RULING:*</u>

Rise Management Group filed its Motion to Set Aside Default Judgment on February 28, 2025 (the "Motion to Set Aside Default Judgment").

<u>Background</u>

A default money Judgment was entered herein against defendants and judgment debtors Rise Group Management and Thai Pham ("Defendants") on January 29, 2025 (the "Judgment"). The principal damages awarded were $35,006.15, with a total judgment of $37,426.30. *Id*. at ¶6.

On February 28, 2025, Rise Management Group filed a motion to set aside the default Judgment. The motion was denied without prejudice for failure to file a proof of service. See Minute Order dated June 16, 2025.

The motion was re-filed on June 25, 2025 and set for hearing on October 13, 2025. The hearing was continued to December 8, 2025.

At the hearing, the Court noted that the renewed motion was filed at the same time as a prior pending appeal. The moving party was directed to re-file the motion and the hearing date was continued to February 23, 2026.

<u>Analysis</u>

Notwithstanding the Court's direction, it does not appear that the motion was re-filed or re-served in advance of the continued hearing date. No further proof of service appears on the Court's docket.

<u>Disposition</u>

The Court finds and orders as follows:

1. The Motion to Set Aside Default Judgment is DENIED, without prejudice.
2. The Court shall issue the order after hearing.

9. 9:00 AM CASE NUMBER: C24-02590
CASE NAME: NEXTGEAR CAPITAL, INC. VS. FARHAD AMINZADA
HEARING ON SUMMARY MOTION
FILED BY:
TENTATIVE RULING:

Before the Court is Plaintiff, NextGear Capital, Inc., a Delaware Corporation ("NextGear" or "Plaintiff")'s Motion for Summary Judgment or in the alternative Summary Adjudication. The Motion relates to Plaintiff's First Amended Complaint for (1) Breach of Demand Promissory Note and Security Agreement, (2) Breach of Individual Guaranty Agreement, (3) Claim and Delivery as Against All Defendants, (4) Conversion as Against All Defendants, and (5) Common Count as Against All Defendants. Defendant US City Auto, Inc., a California corporation doing business as Bay Motors and Defendant Farhad Aminzada (collectively, "Defendants") have not opposed the Motion.

Although Plaintiff moves for summary judgment or in the alternative summary adjudication, they do not include notice or argument with respect to the fourth cause of action for conversion. Consequently, summary judgment is unavailable.

For the following reasons, Plaintiff's Motion for summary adjudication is **granted** as to the first, second, third, and fifth causes of action of the First Amended Complaint.

Request for Judicial Notice

Plaintiff NextGear requests judicial notice of the order after hearing denying Defendants' motion to quash the writ of possession and the Declaration of Farhad Aminzada in support of the *ex parte* motion for a stay of the writ of possession. The unopposed request is **granted**. (Evid. Code §§ 452, 453.)

The Court notes that although the Request references the "Area Target Case," Contra Costa Court Case No. C24-03143, both exhibits are from the instant case, Case No. C24-02590.

Standard

Code of Civil Procedure ("CCP") §§ 437c(c) provides, in relevant part:

> The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.

Section 437c(p)(1) provides:

> A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material

> fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co*. (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid*.; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) Even though the instant MSJ is unopposed, the Court cannot grant summary judgment unless Plaintiff meets the initial burden. (See *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 305 [trial court order granting summary judgment reversed despite lack of timely-filed declaration that was proper under CCP § 2015.5 because unless defendant meets his initial burden, summary judgment cannot be granted "even if the opposing party does not respond sufficiently or at all."].) The scope of the initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal. App. 3d 1, 18.)

Brief Factual and Procedural Background

Plaintiff filed the initial complaint on September 30, 2024 followed by an amended complaint on October 3, 2024. The First Amended Complaint alleges causes of action against Defendants for (1) Breach of Demand Promissory Note and Security Agreement, (2) Breach of Individual Guaranty Agreement, (3) Claim and Delivery as Against All Defendants, (4) Conversion as Against All Defendants, and (5) Common Count as Against All Defendants. The claims arise out of a commercial line of credit ("flooring line") to Defendant automobile dealership. (See, e.g., FAC at ¶ 7.) NextGear alleges that Defendants defaulted on the Demand Promissory Note and Loan Security Agreement.

Plaintiff moved *ex parte* on October 3, 2024 for writ of possession of 33 vehicles which was granted by this Court the same day. On October 31, 2024 Defendants moved *ex parte* to Quash the Writ of Possession. Subsequently, the Court issued an order that Plaintiff post an undertaking in the amount of $1.5 million dollars and that the Motion to Quash be heard as a noticed Motion on December 9, 2024. The hearing date was later continued to December 16, 2024. On February 7, 2025 the Court issued an order after hearing denying Defendants' motion to quash.

Analysis

(1) Breach of Demand Promissory Note and Security Agreement

"[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.)

It is undisputed that (1) Defendant and Plaintiff executed a written Demand Promissory Note and Loan and Security Agreement for the flooring of Borrower's inventory (UMF 1), (2) NextGear has fully performed all terms and conditions required to be performed on its part under the Note (UMF 8), (3) Borrower defaulted in the terms, conditions and covenants of the Note, failing and refusing to make the payments then due and owing under the Note (UMF 4), and (4) as July 14, 2025, the principal amount of $1,261,335.41- is due owing and unpaid, plus interest of $43,379.61 (UMF 9.)

Plaintiff has met its initial burden with respect to its breach of Demand Promissory Note cause of action. And, as Defendants have failed to file any opposition to the Motion, the Court finds that they have failed to meet their responsive evidentiary burden. Accordingly, the unopposed Motion is granted as to the first cause of action.

(2) <u>Breach of Individual Guaranty Agreement</u>

Under California law, the prove a claim for breach of guaranty, the plaintiff must establish: (1) defendant guaranteed payment of an indebtedness of the primary obligor to the plaintiff; (2) defendant defaulted on the indebtedness; (3) plaintiff notified the guarantor of the default; and (4) defendant did not remit funds to the plaintiff under the guaranty agreements. (*Torrey Pines Bank v. Superior Court* (1989) 216 Cal.App.3d 813, 819; Civ. Code § 2787.)

It is undisputed that Defendant Farhad Aminzada executed an Individual Guaranty (UMF 11.) and that he defaulted on that indebtedness. (UMF 12.) Additionally, it is undisputed that NextGear has fully performed all terms and conditions required to be performed on its part under the Guaranty. (UMF 14.)

Plaintiff has met its initial burden with respect to its breach of Individual Guaranty cause of action. And, as Defendants have failed to file any opposition to the Motion, the Court finds that they have failed to meet their responsive evidentiary burden. Accordingly, the unopposed Motion is granted as to the second cause of action.

(3) <u>Claim and Delivery as Against All Defendants</u>

A cause of action for claim and delivery requires the following elements: (1) wrongful exercise of dominion by defendant; (2) over the property as to which plaintiff is owner or entitled to possession; (3) demand for return of property; (4) description of property; and (5) request for recovery of property, or damages. (*Law v. Heiniger* (1955) 132 Cal. App. 2d Supp. 898, 899.) "Claim and delivery is a remedy by which a party with a superior right to a specific item of personal property created, most commonly, by a contractual lien) may recover possession of that specific property before judgment." (*Wajfer Internal. Corp. v. Khorsandi* (1999) 69 Cal.App.4th 1261, 1271.) "[A]n action in claim and delivery is a possessory action, and that one entitled to possession is entitled to maintain the action even though he is not vested with the legal title." (*Feigin v. Kutchor* (1951) 105 Cal.App.2d 744, 747.)

It is undisputed that Plaintiff perfected its security interest in the Collateral, as that term is defined in the Note. (UMF 2.) It is further undisputed that Defendants are in possession and control of all but 25 of the vehicles and related books and records subject to NextGear's Collateral. (Smith Decl. ¶ 9, Ex. 3.) Notwithstanding Plaintiff's demand for return (through its application for writ of possession), Defendants have continued to withhold the remaining inventory. (*Id*. at ¶ 23.)

Plaintiff has met its initial burden with respect to its cause of action for claim and delivery. And, as Defendants have failed to file any opposition to the Motion, the Court finds that they have failed to meet their responsive evidentiary burden. Accordingly, the unopposed Motion is granted as to the third cause of action.

(5) <u>Common Count as Against All Defendants</u>

"The only essential allegations of a common count are (1) the statement of indebtedness in a certain sum, (2) the consideration, i.e., goods sold, work done, etc., and (3) nonpayment." (*Farmers Ins.*

Exchange v. Zerin (1997) 53 Cal. App. 4th 445, 460 [internal quotation marks omitted].)

Here, it is undisputed that (1) within the last year Defendants became jointly and severally indebted to Plaintiff in the amount of $1,488,052.52 (UMF 22), (2) in exchange for those funds, Plaintiff was given a security interest in the Defendants' inventory (UMF 1,2), and (3) Defendants have failed and refused to make payments (Smith Decl. at ¶ 10.)

Plaintiff has met its initial burden with respect to its cause of action for common count. And, as Defendants have failed to file any opposition to the Motion, the Court finds that they have failed to meet their responsive evidentiary burden. Accordingly, the unopposed Motion is granted as to the fifth cause of action.

<u>Attorney's Fees and Costs</u>

Finally, Plaintiff seeks a judgment that it is entitled to an award of attorney's fees and costs under Civil Code § 1717(a).

"In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of th" parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs." (Civ. Code, § 1717, subd. (a).) "[T]he party prevailing on the contract shall be the party who recovered a greater relief in the action on the contract." (Civ. Code, § 1717, subd. (b)(1).)

While some attorney's fees claims can be raised in a memorandum of costs, claims for fees under section 1717 can only be raised via motion or upon entry of a default judgment, unless the parties stipulate otherwise. (Code Civ. Proc., § 1033.5, subds. (c)(5)(A) ["Attorney's fees allowable as costs pursuant to subparagraph (A) … of paragraph (10) of subdivision (a) shall be fixed either upon a noticed motion or upon entry of a default judgment, unless otherwise provided by stipulation of the parties"], (c)(5)(B) ["Attorney's fees awarded pursuant to Section 1717 of the Civil Code are allowable costs under Section 1032 as authorized by subparagraph (A) of paragraph (10) of subdivision (a)"].)

Plaintiff may bring a separately noticed motion for attorney fees. (*Chen v. Valstock Ventures, LLC* (2022) 81 Cal.App.5th 957, as modified (Aug. 24, 2022).

10. 9:00 AM CASE NUMBER: C24-02764
CASE NAME: SAN PABLO RETAIL PARTNERS II, LLC VS. VIAZON NORTHBAY PROPERTIES LLC
***HEARING ON MOTION IN RE: COMPEL FURTHER RESPONSES TO DEMANDS FOR INSPECTION AND REQUESTS FOR ADMISSION AND FOR SANCTIONS**
FILED BY: VIAZON NORTHBAY PROPERTIES LLC
<u>*TENTATIVE RULING:*</u>

Parties to Appear.

11. 9:00 AM CASE NUMBER: C25-00108
CASE NAME: LOUIS MILNE VS. THOMAS EDGINGTON, III
***HEARING ON MOTION IN RE: FOR NEW TRIAL**
FILED BY: MILNE, LOUIS J.
****TENTATIVE RULING:****

The Motion of Plaintiffs Louis J. Milne and Cathy J. Fitzpatrick for a New Trial is **denied**.

Background

Plaintiffs Louis J. Milne and Cathy J. Fitzpatrick filed this action on January 9, 2025, asserting wage and hour claims against Defendant Thomas Scott Edgington, III arising from Milne's employment for Defendant.

Defendant Edgington was personally served with the summons and complaint on January 15, 2025, by a process server, and then again on January 24, 2025, by the Contra Costa County Sheriff. When no responsive pleading was filed within 30 days of the second service, Plaintiffs filed a request for entry of default and default was entered on February 25, 2025.

On April 14, 2025, Defendant filed a motion for relief from default under CCP section 473(b). While Defendant's motion was pending, on April 23, 2025, Plaintiffs obtained a default judgment. Defendant later withdrew the motion after Plaintiffs objected on notice grounds, intending to refile it properly.

Defendant filed his second motion on June 9, 2025, again requesting relief under section 473(b) based on mistake, inadvertence, or excusable neglect. Defendant stated he misunderstood the response deadline, believing the case management conference date was the date by which he had to respond. Defendant also stated he was facing personal and family difficulties at the time. Defendant noted that Plaintiffs had requested entry of default on the first day allowed, without warning, even though they had his contact information. Defendant also argued that Plaintiff Fitzpatrick, a recent Berkeley Law graduate, should have understood the professional expectation to provide specific notice before taking a party's default.

The Court heard Defendant's motion to set aside default and default judgment on November 4, 2025, and issued an order granting the motion on January 8, 2026. Plaintiffs now move for a new trial. Plaintiffs contend the Court's order resulted from: "'abuse of discretion' (CCP § 657(1)), insufficiency of the evidence or the decision is 'against law' (CCP § 657(6)), and '[e]rror of law' (CCP § 657(7))" because "the court's holding on excusable neglect is based on a misunderstanding of the evidence; the court's reliance on a fairness-based duty to warn an unrepresented Defendant is undermined by binding appellate authority (which holds that no such duty exists); and the court's criticism of Plaintiffs for purportedly acting with "quiet speed" is inconsistent with mandatory rules promulgated by the Judicial Council (which require that defaults be taken quickly)." Plaintiffs ask the court to grant a new trial or for reconsideration of Judge Devine's order.

Standard

Under Code of Civil Procedure section 657, a motion for new trial may be granted if there is any:

> [¶] 1. Irregularity in the proceedings of the court, jury, or adverse party, or any order of the court or abuse of discretion by which either party was prevented from having a fair trial. [¶] 2. Misconduct of the jury; and whenever any one or more of the jurors have been induced to assent to any general or special verdict, or to a finding on any question submitted to them by the court, by a resort to the determination of chance, such misconduct may be proved by the affidavit of any one of the jurors. [¶] 3. Accident or surprise, which ordinary prudence could not have guarded against. [¶] 4. Newly discovered evidence, material for the party making the application, which he could not, with reasonable diligence, have discovered and produced at the trial. [¶] 5. Excessive or inadequate damages. [¶] 6. Insufficiency of the evidence to justify the verdict or other decision, or the verdict or other decision is against law. [¶] 7. Error in law, occurring at the trial and excepted to by the party making the application.

(Code Civ. Proc., § 657.)

Irregularity in the Proceedings Due the Lack of a Verbatim Transcript

Plaintiffs first argue there has been an irregularity in the proceedings because they requested a court reporter at the hearing on defendant's motion to set aside but none was provided.

The Local Rules state that the Court does not provide official court reporter services in proceedings where such services are not legally mandated, such as civil law and motion matters. In those cases, counsel must arrange for a private court reporter to be present. But for those cases in which a current fee waiver is on file with the Court, parties may request the services of a court reporter, and the Court will waive the fees. (See Local Rule 2.53.)

At the November 4, 2025 hearing, Plaintiffs appeared at the hearing on Defendant's motion via Zoom. Plaintiff Fitzpatrick, who has a fee waiver on file, had requested a court reporter for the hearing. One was not provided. Ms. Fitzpatrick joined the hearing late and did not raise the issue of a reporter. Plaintiffs claim they were not aware no reporter had been provided, and there were no outward signs that this was the case because they appeared via Zoom.

Plaintiffs argue the trial court's failure to provide a court reporter for the hearing violated their right to meaningful appellate review. Plaintiffs claim this was prejudicial because Defendant's counsel, as well as the Court, made certain statements at the hearing that help show the Court abused its discretion in granting relief, and which Plaintiffs had planned to use to challenge the order on appeal. Plaintiffs argue that even if the Court ultimately disagrees with their anticipated appellate arguments, they were entitled to preserve them, and that an appeal without a transcript would not necessarily have been futile, citing *Gardner v. Superior Court* (1986) 182 Cal.App.3d 335, 339 for the proposition that "orders granting relief under CCP § 473(b) are occasionally reversed."

On the issue of court reporters, the Supreme Court held in *Jameson v. Desta* (2018) 5 Cal.5th 594 that for litigants who qualify for and have obtained a fee waiver, an "official court reporter, or other valid means to create an official verbatim record for purposes of appeal, must generally be made available to in forma pauperis litigants upon request." (*Jameson*, 5 Cal.5th at p. 599.) The Supreme Court recognized the importance of a reporter's transcript to an indigent litigant's ability to meaningfully exercise his or her right to seek appellate review. (*Jameson*, at pp. 608–610.) The Supreme Court stated that "the absence of a court reporter at trial court proceedings and the resulting lack of a verbatim record of such proceedings will frequently be fatal to a litigant's ability to have his or her claims of trial court error resolved on the merits by an appellate court." (*Id*. at p. 608.)

It appears Ms. Fitzgerald joined the hearing late and neglected to confirm the presence of the court reporter. Plaintiffs fail to demonstrate that the matter was raised at the time or that any objection to proceeding was made. Plaintiffs' motion for new trial for irregularity in the proceedings is denied because the court is not persuaded that they were prevented from having a fair trial. The hearing on the motion to set aside proceeded in the ordinary course. Both sides were heard on the merits of the Court's tentative ruling, and the Court issued an order setting forth its reasoning on the issues presented in the papers. To the extent Plaintiffs argue they were prejudiced because the absence of a transcript prevents them from establishing what was purportedly said at the hearing, the Court cannot retroactively create a record of that colloquy. Plaintiffs assert that "[a]t the very least, Plaintiffs are entitled to vacatur of the irregularly-made order, and a new hearing of Defendant's motion with a court reporter present, and with the opportunity to provide the court with supplemental briefing on Defendant's motion in advance of the new hearing." (See Fitzgerald Decl., ¶ 15.) Plaintiffs do not persuade the Court that a new hearing with supplemental briefing before a different judge is needed to provide them a fair hearing on defendant's motion, and the court declines to award such relief. Nor does the Court conclude that a transcript of the oral argument is necessary to permit meaningful review of the Court's consideration and ruling on this law and motion matter.

Asserted Legal and Factual Error

Plaintiffs claim the evidence showed that Defendant neglected to read the summons and other papers carefully, amounting to inexcusable neglect, and the Court got that issue wrong. They also argue the Court misapplied the law when it considered their failure to provide Defendant with specific notice of an intent to take his default because a duty to warn applies only to represented parties. Plaintiffs also argue the Court was mistaken when it stated the parties had been in ongoing communication before the default.

These matters do not amount to new or different facts or circumstances that justify reconsideration of Judge Devine's order, or a new hearing on the motion to set aside default. Moreover, Plaintiffs have not shown that the circumstances set forth in Code of Civil Procedure section 657 exist.

Disposition

Based on the foregoing, the motion is denied.

12. 9:00 AM CASE NUMBER: C25-01397
CASE NAME: ROBERT RODRIGUEZ VS. SIMONA ZAKHEIM
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: ZAKHEIM, SIMONA YANA S.
TENTATIVE RULING:

This matter is continued by the Court to March 23, 2026. The demurrer filed by Elisabeth Masoudi is advanced from May 11 to March 23, 2026. Opposition and reply are due per code.

Defendants Simona Zakheim and Hyden Zakheim shall give notice of the new hearing dates to all parties.

13. 9:00 AM CASE NUMBER: C25-01595
CASE NAME: PRODIGY MANAGEMENT, LLC VS. KHRISTIAN BUISON
***HEARING ON MOTION IN RE: APPLICATION FOR WRIT OF POSSESSION AND HEARING RE: KHRISTIAN JOY BUISON APPLICATION**
FILED BY:
TENTATIVE RULING:

Plaintiff Prodigy Management, LLC (“Plaintiff”) filed an Application for Order for Issuance of Writ of Attachment after Hearing on September 12, 2025 (the “Application for Writ of Attachment”). The Application for Writ of Attachment was initially set for hearing on January 26, 2026. The application was subsequently continued to February 23, 2026. No opposition has been filed.

Background

Plaintiff filed its Complaint on June 5, 2025 alleging that Khristain Joy Buison and Buison Enterprise Inc. failed to pay certain amounts due and owing in relation to the purchase of a pizza restaurant. The Complaint includes claims for breach of contract, common counts and fraud.

Analysis

First, the application is procedurally defective. The Application for Writ of Attachment paper (AT-105) was accompanied by a “NOTICE OF APPLICATION FOR WRIT OF POSSESSION AND HEARING” (CD-110). The property sought to be attached is certain real property located in Brentwood, California. The proper notice for an application for a writ of attachment must given using form AT-115. For this reason alone, the Court would deny the application.

Second, no supporting declaration other than the Application for Writ of Attachment supports the application. The Application for Writ of Attachment is signed under penalty of perjury and contains some information about the nature of the alleged obligation and the damages figures, including a short attachment (“ATTACHMENT TO AT-105 SECTION 7”). However, this is woefully deficient. There is very little information given regarding the breach of the subject contract and calculation of the damages. No exhibits are attached, such as the described promissory note. Most importantly, however, what is stated is only attested to by the attorney. There is no foundation that the attorney has personal knowledge of the underlying transaction and breach.

Disposition

The Court finds and orders as follows:

1. The Application for Writ of Attachment is DENIED.
2. The Court shall issue the order after hearing.

14. 9:00 AM CASE NUMBER: C25-02473
CASE NAME: MARGARET FERRARI VS. JAMES KLEIN
***HEARING ON MOTION IN RE: ORDER SUBSTITUTING LAURIE RENE KLEIN, SUCCESSOR IN INTEREST OF JAMES KLEIN, DECEASED, IN THE PLACE OF DECEASED DEFENDANT AND ALLOWING ACTION TO BE CONTINUED**
FILED BY: FERRARI, MARGARET
****TENTATIVE RULING:****

Plaintiff Margaret Ferrari ("Plaintiff") filed a Motion for Order Substituting Laurie Rene Klein, Successor in Interest of James Klein, Deceased, in the Place of Deceased Defendant and Allowing Action to be Continued Against the Successor in Interest, and Allowing the Filing of a First Supplemental Complaint on January 20, 2026 (the "Motion to Substitute Successor-in-Interest as Defendant"). The Motion to Substitute Successor-in-Interest as Defendant was set for hearing on February 23, 2025. The motion is unopposed.

Background

Plaintiff filed her Complaint on August 28, 2025 against Home Depot U.S.A., Inc. and an individual, James aka "Jimi" Klein ("Mr. Klein"). The Complaint stems from an alleged accident occurring at a Home Depot involving Plaintiff and its employee Mr. Klein.

Since the filing of the Complaint, Plaintiff has learned that Mr. Klein is deceased. See Declaration of Patrick R. Campbell filed January 20, 2026 ("Supporting Declaration"), ¶2 *et seq*.

Plaintiff seeks leave to file a supplemental complaint to allege that Mr. Klein is deceased and that Laurie Rene Klein is his successor in interest.

Analysis

Pursuant to Code of Civil Procedure section 377.40, a civil claim against a decedent must be brought against the decedent's personal representative or, **to the extent provided by statute, against the decedent's successor in interest**. See Code Civ. Proc. § 377.40 (subject to the Probate Code "… a cause of action against a decedent that survives may be asserted against the decedent's personal representative or, to the extent provided by statute, against the decedent's successor in interest.") (emphasis added); see also *Smith v. Cimmet* (2011) 199 Cal.App.4th 1381, 1390-1391 (any litigation must be maintained by, or against, the executor or personal representative of the estate); see also Code Civ. Proc. §§ 377.11 ("decedent's successor in interest means the beneficiary of the decedent's estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action.") and 377.42 ("In an action or proceeding against a decedent's personal representative or, to the extent provided by statute, against the decedent's successor in interest, on a cause of action against the decedent, all damages are recoverable that might have been recovered against the decedent had the decedent lived except damages recoverable under Section 3294 of the Civil Code or other punitive or exemplary damages.").

Plaintiff has made a proffer that it can allege that Mr. Klein is deceased and that Laurie Rene Klein is his wife and successor in interest.

While the Court is not making any final determination at this stage, Plaintiff has articulated a *prima facie* basis for the alleged liability on the part of Laurie Rene Klein that would allow a claim to be asserted against that person under Code of Civil Procedure section 377.40. Importantly, Section 377.40 allows for actions to be prosecuted against a successor in interest "**to the extent provided by statute.**"

Among other things, statutory provisions provide for liability on the decedent's former spouse in certain circumstances. See e.g. Probate § 13550 ("upon the death of a married person, the surviving spouse is personally liable for the debts of the deceased spouse chargeable against the property described in Section 13551 to the extent provided in Section 13551"). Or, in certain circumstances, liability may premised on transfer of the decedent's property. See e.g. Prob. Code § 13109(a) (transferee is personally liable, to the extent provided in this section for the unsecured debts of the decedent).

Disposition

The Court finds and orders as follows:

1. The Motion to Substitute Successor-in-Interest as Defendant is GRANTED.
2. A proposed form of order was lodged with the Court which the Court shall execute and enter.

15. 9:00 AM CASE NUMBER: N23-1456
CASE NAME: CURIA GLOBAL, INC. v. BRYOLOGYX, INC.
***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE RE RICHARD H. TILGHMAN IV**
FILED BY: CURIA GLOBAL, INC.
TENTATIVE RULING:*

On October 7, 2025, petitioner Curia Global, Inc. ("Petitioner") filed an application for leave for attorney Richard H. Tilghman ("Counsel") to appear on its behalf *pro hac vice* in this matter (the "Pro Hac Vice Application"). The Pro Hac Vice Application was set for hearing on February 23, 2026. The motion is unopposed.

Analysis

Rule 9.40 of the California Rules of Court ("CRC") sets forth the matters that must be addressed in an application to appear *pro hac vice* in a particular cause pending before the Court:

> (1) The applicant's residence and office address;
>
> (2) The courts to which the applicant has been admitted to practice and the dates of admission;
>
> (3) That the applicant is a licensee in good standing in those courts;
>
> (4) That the applicant is not currently suspended or disbarred in any court;
>
> (5) The title of each court and cause in which the applicant has filed an application to appear as counsel pro hac vice in this state in the preceding two years, the date of each application, and whether or not it was granted; and
>
> (6) The name, address, and telephone number of the active licensee of the State Bar who is attorney of record.

CRC 9.40 (d).

Counsel's supporting declaration sets forth Counsel's background and addresses each of the enumerated requirements. See Counsel's Declaration filed October 7, 2025, ¶2 *et seq*.

Disposition

The Court finds and rules as follows:

1. The Pro Hac Vice Application is GRANTED.
2. A proposed form of order was lodged with the Court which the Court shall execute and enter.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C24-00689
CASE NAME: SHANIEA RODGERS VS. DOES 1-25
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF SHANIEA RODGERS'S FURTHER RESPONSES TO FORM INTERROGATORIES, SET ONE**
FILED BY: DIANDA MANAGING PARTNER II, LLC
****TENTATIVE RULING:****

Defendant Dianda Managing Partner II, LLC ("Defendant") filed three separate discovery motions on September 16, 2025 to compel further responses to discovery requests propounded upon plaintiff Shaniea Rodgers ("Plaintiff"). Collectively, these motions are referred to herein as the "Motions to Compel Further Responses." The Motions to Compel Further Responses were set for hearing on February 23, 2026. The motions are opposed.

Background

The discovery requests at issue in the Motions to Compel Further Responses (collectively, the "Discovery Requests") are the following:

1. Defendant's Requests for Production of Documents, Set One (the "**RPDs**");
2. Defendant's Form Interrogatories—General, Set One (the "**FROGs**"); and
3. Defendant's Requests for Admissions, Set One (the "**RFAs**").

An Opposition paper was filed on February 9, 2026. Reply papers were filed February 13, 2026, including a set of Evidentiary Objections (the "Objections").

Objections

Objection No. 1. Defendant objects to Exhibit A to the Opposition. Exhibit A appears to be a set of further responses to the RFAs, **FROGs** and **RPDs** dated February 1, 2026, January 30, 2026, and February 1, 2026, respectively, followed by a series of medical and other records. Defendant's "Legal Relevance" and Evidence Code section 352 objections are OVERRULED. Defendant's "Lacks Foundation" objection is SUSTAINED. The subject exhibit was not attached to any declaration executed under penalty of perjury setting forth any foundation for the proffered exhibit. Rather, it was merely attached as an exhibit to a brief. That is not a proper foundation for the receipt of evidence relative to a law and motion matter. See Weil & Brown, *et al*., *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) ("Weil & Brown") § 9:53a (writings offered in evidence on law and motion matter must be authenticated, typically by filed declarations).

Objection No. 2. Defendant objects to Exhibit B to the Opposition. Exhibit B appears to be an email dated July 21, 2025 addressing various deadlines in connection with the pending discovery matters. Defendant's "Legal Relevance," "Hearsay" and Evidence Code section 352 objections are OVERRULED. Defendant's "Lacks Foundation" objection is SUSTAINED for the same reasons set forth above.

Analysis

1. Timeliness of Motions to Compel Further Responses

Plaintiff's Opposition contends that the Motions to Compel Further Responses are time barred because they were not filed within the forty-five (45) days deadline imposed by the discovery statutes for the bringing of motions to compel further responses to discovery. See Code Civ. Proc. § 2030.300(c) (a party waives the right to compel further responses to interrogatories unless "notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing…"); see also Code Civ. Proc. § 2031.310(c) (as to response to a demand for production of documents).

The subject responses to the Discovery Requests were served on July 30, 2025. Declaration of James E. Lanham filed September 16, 2025 (re FROGs), ¶12 and **Exhibit H** thereto; Declaration of James E. Lanham filed September 16, 2025 (re RPDs), ¶12 and **Exhibit H** thereto; Declaration of James E. Lanham filed September 16, 2025 (re RFAs), ¶12 and **Exhibit G** thereto. These subject responses are referred to herein as the "Amended Responses."

45 days after July 30, 2025 was Saturday, September 13, 2025. The copies of the Amended Responses proffered with the moving papers failed to contain any proof(s) of service that may have accompanied those responses and the attendant declarations do not describe the method of service. The Reply brief indicates that service was done electronically, although it cites no evidence.

Nonetheless, whether served by email or mail, the cutoff to file a motion to compel further responses would not have run any sooner than September 16, 2025, the day the moving papers were filed. See Weil & Brown, § 8:1146 (2 court days extension for electronic service or 5 calendar days for mail service). Plaintiff's arguments fail to account for an extension of the deadline based on method of service (or to even acknowledge the weekend/holiday extension since September 13, 2025 was a Saturday).

Accordingly, the Court rejects the contention that the Motions to Compel Further Responses are untimely.

2. Merits of Motions to Compel Further Responses

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1).

When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Having considered the moving papers, including the Separate Statements, the Opposition and any further pleadings submitted, the Court makes the following findings and orders as to the Discovery Requests and responses at issue:

FROGs

FROGs No. 6.5. The stated objections are OVERRULED. The Court finds that the responding party's answer to this interrogatory is evasive and/or incomplete. The responding party is ordered to make a further response to this interrogatory without the overruled objections.

FROGs No. 8.2. The stated objections are OVERRULED. The Court finds that the responding party's answer to this interrogatory is evasive and/or incomplete. The responding party is ordered to make a further response to this interrogatory without the overruled objections.

FROGs No. 11.1. The Court finds that the responding party's answer to this interrogatory is incomplete. The responding party is ordered to make a further response to this interrogatory. The further answer shall be as complete and straightforward as the information reasonably available to the responding party permits. See Weil & Brown, § 8:1047.

FROGs No. 11.2. The Court finds that the responding party's answer to this interrogatory is incomplete. The responding party is ordered to make a further response to this interrogatory. The further answer shall be as complete and straightforward as the information reasonably available to the responding party permits.

FROGs No. 12.1. The stated objections are OVERRULED except as to the stated privilege objections. The Court finds that the responding party's answer to this interrogatory is evasive and/or incomplete. The responding party is ordered to make a further response to this interrogatory without the overruled objections. If any responsive information is redacted or withheld pursuant to any continued stated privilege objection(s), the responding party shall provide a detailed privilege log.

FROGs No. 12.2. The Court finds that the responding party's answer to this interrogatory is evasive and/or incomplete. The responding party is ordered to make a further response to this interrogatory. The further answer shall be as complete and straightforward as the information reasonably available to the responding party permits.

FROGs No. 12.3. The Court finds that the responding party's answer to this interrogatory is evasive and/or incomplete. The responding party is ordered to make a further response to this interrogatory. The further answer shall be as complete and straightforward as the information reasonably available to the responding party permits.

FROGs No. 12.6. The Court finds that the responding party's answer to this interrogatory is evasive and/or incomplete. The responding party is ordered to make a further response to this interrogatory. The further answer shall be as complete and straightforward as the information reasonably available to the responding party permits.

FROGs No. 17.1. The stated objections are OVERRULED except as to the stated privilege objections. The Court finds that the responding party's answer to this interrogatory is evasive and/or incomplete. The responding party is ordered to make a further response to this interrogatory without the overruled objections. If any responsive information is redacted or withheld pursuant to any continued stated privilege objection(s), the responding party shall provide a detailed privilege log. Nothing in this order prohibits the responding party from properly exercising the option to respond, in a code compliant fashion, pursuant to the provisions of Code of Civil Procedure section 2030.230. See Code Civ. Proc. § 2030.230. The present response fails to constitute an adequate code compliant response under Section 2030.230.

RPDs

RPD No. 6. The Court finds that the responding party's statement of compliance with the demand is incomplete. The statement of compliance portion of the response contains non-code-compliant limitations, caveats, and purported carve-outs:

> Subject to and without waiving the foregoing objections, and to the extent Plaintiff understands this request, Plaintiff responds as follows: Plaintiff will produce documents in control, custody and possession. Bate stamped RODGERS000001 and subsequently.

The response is not code compliant as written. Code Civ. Proc. § 2031.210(a); see *Pollock v. Superior Court* (2023) 93 Cal.App.5th 1348, 1357 (discussing nature of code compliant response to document demand); see also Weil & Brown, § 8:1469. The qualifying language is improper and shall be stricken from any further response. All responsive documents shall be produced. The responding party is hereby admonished regarding the scope of their discovery obligations. The responding party is obligated to produce all responsive documents in the responding party's possession, custody or control. Code Civ. Proc. § 2031.010(a); see also Code Civ. Proc. § 2031.220. Documents under a party's "control" include those which a party has the legal right to obtain upon demand from third parties.

The stated objections are OVERRULED except as to the stated privilege objections. The responding party is ordered to make a further response to this document request without the overruled objections and without the stated qualifying language. If any responsive documents are redacted or withheld pursuant to any continued stated privilege objection(s), the responding party shall provide a detailed privilege log. The log need not designate documents generated by the responding party's attorneys which may be withheld without further disclosure, subject to any further court order.

RPD No. 8. The Court finds that the responding party's representation of the inability to comply is inadequate, incomplete, or evasive. The portion of the response containing the statement of the inability to comply contains non-code-compliant limitations, caveats, and purported carve-outs:

> Subject to and without waiving the foregoing objections, and to the extent Plaintiff understands this request, Plaintiff responds as follows: after a diligent search and reasonable inquiry, there are no responsive documents in Plaintiff s possession, custody, or control

The response is not code compliant as written. Among other things, the response fails to comply with the provisions of Code of Civil Procedure section 2031.230. See Code Civ. Proc. § 2031.230 ("A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. **This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding**

party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.") (emphasis added).

The qualifying language is improper and shall be stricken from any further response.

The stated objections are OVERRULED except as to the stated privilege objections. The responding party is ordered to make a further response to this document request without the overruled objections and without the stated qualifying language. If any responsive documents are redacted or withheld pursuant to any continued stated privilege objection(s), the responding party shall provide a detailed privilege log. The log need not designate documents generated by the responding party's attorneys which may be withheld without further disclosure, subject to any further court order.

RPD Nos. 22, 29, 31, 34, and 35. The Court finds that the responding party's representation of the inability to comply is inadequate, incomplete, or evasive for the same reasons set forth with respect to RPD No. 8 above, and the Court makes the same orders requiring the responding party to make a further response to these document requests.

RPD Nos. 30 and 32. The Court finds that the responding party's representation of the inability to comply is inadequate, incomplete, or evasive for the same reasons set forth with respect to RPD No. 6 above, and the Court makes the same orders requiring the responding party to make a further response to these document requests.

RFAs

RFA No. 27. The stated objections are OVERRULED. The responding party is ordered to make a further response to this request for admission without the overruled objections. The response shall be code compliant, including, among other things, "(1) [admitting] so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party. [¶] (2) [denying] so much of the matter involved in the request as is untrue. [¶] [and] (3) [specifying] so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge." See Code Civ. Proc. § 2033.220(b).

<u>Sanctions</u>

When properly requested, monetary sanctions are mandatory against the party losing on a motion to compel further responses to discovery requests unless the court finds "substantial justification" for that party's position or other circumstances making the sanction "unjust." Code Civ. Proc. §§ 2030.300(d), 2031.310(h) and 2033.290(d); see Weil & Brown, § 1920.

In addition, Plaintiff's failure to make full and complete code compliant responses constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d).

The Court finds that the foregoing conduct by Plaintiff constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions.

In failing to make full and complete code compliant responses and in unsuccessfully opposing this motion, the Court finds that Plaintiff did not act with substantial justification. Nor does the Court find any other circumstances make the imposition of the sanction unjust.

Plaintiff shall pay monetary sanctions to Defendant in the amount of **$4,305.00** (the "Monetary Sanctions"). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys' fees, incurred by Defendant as a result of the foregoing conduct by Plaintiff. In fixing said amount, the

Court has considered all evidence in the record before the Court, including the supporting declarations of the moving party. The Court also mitigated the award in the exercise of its discretion and in light of the totality of the circumstances bearing on this discovery dispute.

Disposition

The Court further finds and orders as follows:

1. The Motions to Compel Further Responses are GRANTED.
2. Plaintiff shall serve verified further amended responses to the Discovery Requests within **thirty (30) calendar days** of notice of entry of this order, in accordance with the further orders and directives set forth above.
3. The Monetary Sanctions shall be paid by Plaintiff to Defendant within **thirty (30) calendar days** of notice of entry of this order.
4. The Court shall issue the order after hearing.

17. 9:01 AM CASE NUMBER: C24-00689
CASE NAME: DOES 1-25
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF SHANIEA RODGERS'S FURTHER RESPONSES TO REQUEST FOR ADMISSION, SET ONE**
FILED BY: DIANDA MANAGING PARTNER II, LLC
****TENTATIVE RULING:****

See Line 16 above.

18. 9:01 AM CASE NUMBER: C24-00689
CASE NAME: SHANIEA RODGERS VS. DOES 1-25
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF SHANIEA RODGERS'S FURTHER RESPONSES TO REQUEST FOR PRODUCTION, SET ONE**
FILED BY: DIANDA MANAGING PARTNER II, LLC
****TENTATIVE RULING:****

See Line 16 above.